

arbitration provision does not include “interpretation” of the contract, or disputes “arising out of,” or “relating to” the Agreement. The language specifically refers to “disputes ... with respect to performance of the contract.” Defendant cites no precedent that holds that the term “with respect to performance of the contract” is sufficient to encompass questions of statutory interpretation and independent contractor classification under federal law.

The Court has considered the scope of work in both the April 12, 2019, and May 6, 2019, agreements. While the Renewed Agreement has a more expansive scope of work, the language does not show that it covers the claims alleged in this case. Here, Plaintiff’s claims arise from rights as an alleged employee and those claims are distinct from disputes with respect to contract performance. For example, “[m]any Labor Code claims are rooted in the employment relationship but arise independently of the terms of the plaintiff’s employment contract.” (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 896, fn. 5.) The alleged “Labor Code claims do not arise out of the contract but instead are distinct from rights under the Agreements.” (*Elijahjuan, supra*, 210 Cal.App.4th 15, 24.) Similarly, FEHA claims are different than a claim regarding performance of a contract.

For the reasons discussed herein, Defendant has not shown that performance under the Agreement is at issue in this case or that the parties otherwise agreed to arbitrate matters concerning interpretation of the Agreement or agreed to arbitrate claims relating to any work performed by Plaintiff for Defendant.

Accordingly, the Motion is denied.

13. 9:00 AM CASE NUMBER: C25-01992

CASE NAME: JUSTIN WANG VS. TESLA, INC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: TESLA, INC

TENTATIVE RULING:

Appearance required to address parties intended stipulation to arbitration.

14. 9:00 AM CASE NUMBER: C25-02273

CASE NAME: LINDA WILLIAMS VS. DOES 1-50

***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**

FILED BY: TENET HEALTHCARE CORPORATION

TENTATIVE RULING:

The unopposed motion by defendant Tenet Healthcare Corporation to quash the service of summons is granted for the reasons stated in the motion and supporting documents.